

**IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF NORTH CAROLINA
SOUTHERN DIVISION**

No. _____

**IN RE: CAMP LEJEUNE
WATER LITIGATION**

_____/

THIS DOCUMENT RELATES TO:

JURY TRIAL DEMANDED

Plaintiff First Middle Last Suffix

SHORT-FORM COMPLAINT

The Plaintiff named below, or Plaintiff’s representative, files this Short Form Complaint against Defendant United States of America under the Camp Lejeune Justice Act of 2022 (“CLJA”). Pub. L. No. 117-168, § 804, 136 Stat. 1802, 1802–04 (2022). Plaintiff or Plaintiff’s representative incorporates by reference the allegations contained in the Master Complaint (DE 25) on file in the case styled *In Re: Camp Lejeune Water Litigation*, Case No. 7:23-cv-897, in the United States District Court for the Eastern District of North Carolina. Plaintiff or Plaintiff’s representative files this Short-Form Complaint as permitted by Pretrial Order No. 2.

Plaintiff or Plaintiff’s representative alleges as follows:

I. INSTRUCTIONS

1. On THIS FORM, are you asserting a claim for injuries to YOU or to SOMEONE ELSE you legally represent?

- ☐ To me
☐ Someone else

This form may only be used to file a complaint for ONE PERSON’S injuries. If you intend to bring claims for multiple individuals’ injuries—for example, a claim for yourself and one for a deceased spouse—you must file ONE FORM FOR EACH INJURED PERSON.

II. PLAINTIFF INFORMATION

If you checked "To me" in Box 1, **YOU are the Plaintiff**. Complete this section with information about YOU.

If you checked "Someone else" in Box 1, **THAT PERSON is the Plaintiff**. Complete this section with information about THAT PERSON.

2. First name:	3. Middle name:	4. Last name:	5. Suffix:
6. Sex: ☐ Male ☐ Female ☐ Other		7. Is the Plaintiff deceased? ☐ Yes ☐ No <i>If you checked "To me" in Box 1, check "No" here.</i>	
Skip (8) and (9) if you checked "Yes" in Box 7.			
8. Residence city:		9. Residence state:	
Skip (10), (11), and (12) if you checked "No" in Box 7.			
10. Date of Plaintiff's death:	11. Plaintiff's residence state at the time of their death:	12. Was the Plaintiff's death caused by an injury that resulted from their exposure to contaminated water at Camp Lejeune? ☐ Yes ☐ No	

III. EXPOSURE INFORMATION

If you checked "To me" in Box 1, complete this section with information about YOU.

If you checked "Someone else" in Box 1, complete this section with information about THAT PERSON.

13. Plaintiff's first month of exposure to the water at Camp Lejeune:	14. Plaintiff's last month of exposure to the water at Camp Lejeune:
15. Estimated total months of exposure:	16. Plaintiff's status at the time(s) of exposure (please check all that apply): ☐ Member of the Armed Services ☐ Civilian (includes in utero exposure)
17. If you checked Civilian in Box 16, check all that describe the Plaintiff at the time(s) of exposure: ☐ Civilian Military Dependent ☐ Civilian Employee of Private Company ☐ Civil Service Employee ☐ In Utero/Not Yet Born ☐ Other	18. Did Plaintiff at any time live or work in any of the following areas? Check <u>all</u> that apply. ☐ Berkeley Manor ☐ Hadnot Point ☐ Hospital Point ☐ Knox Trailer Park ☐ Mainside Barracks ☐ Midway Park ☐ Paradise Point ☐ Tarawa Terrace ☐ None of the above ☐ Unknown

IV. INJURY INFORMATION

If you checked “To me” in Box 1, complete this section with information about YOU.

If you checked “Someone else” in Box 1, complete this section with information about THAT PERSON.

19. Identify the illnesses or conditions the Plaintiff suffered as a result of exposure to contaminated water at Camp Lejeune.

Injury	Approximate date of onset
☐ Adverse birth outcomes (Plaintiff is the PARENT of an individual who died in utero or was stillborn or born prematurely)	
☐ ALS (Lou Gehrig’s Disease)	
☐ Aplastic anemia or myelodysplastic syndrome	
☐ Bile duct cancer	
☐ Bladder cancer	
☐ Brain / central nervous system cancer	
☐ Breast cancer	
☐ Cardiac birth defects (Plaintiff was BORN WITH the defects)	
☐ Cervical cancer	
☐ Colorectal cancer	
☐ Esophageal cancer	
☐ Gallbladder cancer	
☐ Hepatic steatosis (Fatty Liver Disease)	
☐ Hypersensitivity skin disorder	
☐ Infertility	
☐ Intestinal cancer	
☐ Kidney cancer	
☐ Non-cancer kidney disease	
☐ Leukemia	
☐ Liver cancer	
☐ Lung cancer	
☐ Multiple myeloma	
☐ Neurobehavioral effects	
☐ Non-cardiac birth defects (Plaintiff was BORN WITH the defects)	
☐ Non-Hodgkin’s Lymphoma	
☐ Ovarian cancer	
☐ Pancreatic cancer	
☐ Parkinson’s disease	
☐ Prostate cancer	
☐ Sinus cancer	
☐ Soft tissue cancer	
☐ Systemic sclerosis / scleroderma	
☐ Thyroid cancer	

The Camp Lejeune Justice Act does not specify a list of covered conditions.

If the Plaintiff suffers or previously suffered from a condition not listed above, and the Plaintiff alleges that the condition was caused by exposure to the water at Camp Lejeune as required under the Act, please check "Other" and describe the condition on the following lines.

Note in particular that the Board of Veterans' Appeals of the U.S. Department of Veterans Affairs (the "VA") has approved benefits in connection with Camp Lejeune for conditions beyond those listed above.

☐ Other:

Approximate date of onset

_____	_____
_____	_____
_____	_____
_____	_____

V. REPRESENTATIVE INFORMATION

If you checked "To me" in Box 1, **SKIP THIS SECTION** and proceed to section VI. ("Exhaustion").

If you checked "Someone else" in Box 1, complete this section with information about YOU.

20. Representative First Name:	21. Representative Middle Name:	22. Representative Last Name:	23. Representative Suffix:
24. Residence City:		25. Residence State:	
		☐ Outside of the U.S.	
26. Representative Sex: ☐ Male ☐ Female ☐ Other			
27. What is your familial relationship to the Plaintiff? ☐ They are/were my spouse. ☐ They are/were my parent. ☐ They are/were my child. ☐ They are/were my sibling. ☐ Other familial relationship: They are/were my _____ ☐ No familial relationship.			
Derivative claim			
28. Did the Plaintiff's death or injury cause the Plaintiff's spouse, children, or parents mental anguish, loss of financial support, loss of consortium, or any other economic or non-economic harm for which you intend to seek recovery? ☐ Yes ☐ No			

VI. EXHAUSTION

29. On what date was the administrative claim for this Plaintiff filed with the Department of the Navy (DON)? <i>mm/dd/yyyy</i>	30. What is the DON Claim Number for the administrative claim? _____ ☐ DON has not yet assigned a Claim Number
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VII. CLAIM FOR RELIEF

Plaintiff respectfully requests that pursuant to subsection 804(b) of the CLJA the Court enter judgment against the Defendant and award damages and all other appropriate relief for the harm to Plaintiff that was caused by exposure to the water at Camp Lejeune.

VIII. JURY TRIAL DEMAND

Plaintiff demands a trial by jury of all issues so triable pursuant to Rule 38 of the Federal Rules of Civil Procedure and subsection 804(d) of the CLJA.

Dated: _____

Signature